
**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**ORDER DENYING THE
MEDIA'S REQUEST TO
INTERVENE,**

AND

**STANDING ORDER FOR
RULE 4-202.04 NOTICE OF
MOTIONS FOR
CLASSIFICATION**

Case No. 251403576

JUDGE TONY F. GRAF, JR.

Two groups of media outlets seek to intervene in this matter. (*See* Dkt. 164, 197). “Only the State and the defendant,” however, “are actual parties to a criminal action.” *State v. Lane*, 2009 UT 35, ¶ 17, 212 P.3d 529, 532. The press need not be a party to a criminal action to pursue the public’s presumptive right to access public court records. *See Soc’y of Pro. Journalists v. Bullock*, 743 P.2d 1166, 1173-76 (Utah 1987) (discussing development of standing through denial of access). The press has already been provided with a mechanism through Rule 4-202.04 to protect that right and has already utilized it in this matter. *See* Utah R. Jud. Admin. 4-202.04(4); (*see also* Dkt. 150, 164, 171). For this reason, the court denies both requests to intervene.

The court now reiterates and clarifies its Order Requiring Parties to Serve All Closure or Reclassification Motions on the Media dated November 10, 2025. (*See* Dkt. 171) as follows:

Again, the parties are ORDERED to serve all closures motions on members of the press who have requested notice. The parties must file proof of service with the court.

A “closure motion” is any motion to classify or reclassify a presumptively *public* court record under Rule 4-202.02 as any other classification. *Compare* Utah R. Jud. Admin. 4-202.02(2) *with* (3)-(5). The parties need not serve notice on members of the press of court records that are presumptively *not* public. *See* Utah R. Admin. 4-202.02(3)-(5).

A “court record” means a record that is prepared, owned, received, or retained by this court. Utah R. Jud. Admin. 4-202.01(2). This includes hearings. *See id.* at (3). Therefore, the parties are ORDERED to serve all motions to close hearings on members of the press who have requested notice. The parties must likewise file proof of service with the court.

Nonetheless, the parties are not required to serve notice on members of the press of motions to *limit* electronic media coverage. *Compare* Utah R. Jud. Admin. 4-401.01(2) (permitting courts to restrict or limit electronic media coverage) *with* 4-202.04.

If members of the media intend to object to a closure motion and request a closure hearing, such objections and requests must be filed within seven (7) days of receiving notice. To promote judicial economy and to eliminate unnecessary hearings, the court may decline to hold a closure hearing if no hearing is requested.

The foregoing should be treated by the parties as a standing order for the duration of this case.

DATED this 29 day of December, 2025.

BY THE COURT:

A handwritten signature in blue ink, appearing to read "Tony F. Graf, Jr.", is written over a horizontal line.

JUDGE TONY F. GRAF, JR.

CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

EMAIL: KATHRYN NESTER KATHY@NESTERLEWIS.COM

EMAIL: STACI VISSER STACI@BROWNBRADSHAW.COM

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12/29/2025

/s/ TREENA HANSEN

Date: _____

Signature